

Justification and Approval (J&A) Modified
for Federal Acquisition Regulation (FAR) 13.501

1. Identification of the Agency and Contracting Activity:

The requiring activity is the Defense Health Agency (DHA), Deputy Assistant Director Medical Affairs (DAD-MA), Clinical Support Division. The Contracting Activity for this acquisition is Defense Health Agency Contracting Activity (DHACA), Professional Services Contracting Division (PS-CD).

2. Nature and/or Description of Action being Approved: This is a J&A pursuant to FAR Part 13, Simplified Acquisition Procedures.

The action being approved is for an individual firm fixed-price contract under FAR Part 13.5. The services currently provided will need to continue under a new bridge contract. The new DHA DAD-MA Patient Safety Program (PSP) for Military Treatment Facilities (MTFs) competed action is currently in the source selection evaluation phase with PS-CD with pending award for 30 June 2025. The purpose of this bridge action is to maintain continuity of services and prevent a gap in coverage for the Air Force (AF) PSP support. The current AF PSP Contract [REDACTED] expires as of 30 April 2025. All six months of FAR 52.217-8, Option to Extend Services, have been exercised. The new DAD-MA PSP for MTFs contract which includes all AF and Navy PSP support for MTFs as well as DHA PSP support is still in the source selection evaluation phase. The Solicitation [REDACTED] closed on 18 September 2024. The requested AF PSP 6-month bridge contract will consist of a two (2) month base period effective 1 May 2025 to 30 June 2025 and two 2-month option periods effective from 1 July 2025 to 31 August 2025 and 1 September 2025 to 31 October 2025.

3. Description of Supplies/Services:

The proposed contactor for this action is [REDACTED]
[REDACTED]

Six Month Bridge Supporting AF PSP Services: This requirement is to provide the expertise and experience required by Patient Safety Specialists (PSS), Patient Safety Assistant Coordinators, and Patient Safety Data Analyst at inpatient AF MTFs.

DHA will provide support to the AF in order to utilize PSS to foster a culture of patient safety, reliability, collaborative teamwork, and process improvement. The PSS will engage in proactive risk assessment, risk mitigation, and process improvement. When events do occur, the PSS will lead efforts to analyze events, identify root causes and contributing factors, and to develop corrective action plans that include provision for ongoing compliance monitoring. The AF PSS will follow prescribed processes for responding to Sentinel Events, Department of Defense (DoD) Reportable Events, and use literature-proven strategies to reduce events and improve care. Patient Safety, in collaboration with other areas such as Performance Improvement and Risk Management, promotes a culture of safety in which errors are proactively identified and reported freely without retribution. The AF PS team will follow prescribed processes for responding to Sentinel Events and DoD Reportable Events and will use literature proven strategies to reduce future events and improve care.

Period	Period of Performance	Estimated Value	Type of Funding
Base Period	1 MAY 2025 – 30 JUNE 2025		Operations & Maintenance (O&M)
Option Period 1	1 JULY 2025 – 31 AUGUST 2025		O&M
Option Period 2	1 SEPTEMBER 2025 – 31 OCTOBER 2025		O&M
Total			

4. Statutory Authority Permitting the Sole Source Acquisition: In accordance with 41 United States Code (U.S.C) 1901(e), as implanted under FAR 13.5, sole source (including brand name) under the authority of the simplified procedures for certain commercial items/services.

5. Rationale Justifying Use of Authority Cited:

The mandated DoD PSP of which these services support is critical to the Military Health System. If action is not taken, multiple full-time Patient Safety Professionals positions will be vacant, thus not fulfilling the National Defense Authorization Act. This gap puts our patients at risk for increased medical events which could include death. Awarding a contract to another company would result in unacceptable delays in obtaining the required services. Additionally, a new contract would not be completed in time to avoid a gap in service.

Awarding a contract to another company would result in unacceptable delays in obtaining the required services and additionally, a new contract would not be completed on time. It is also unreasonable to transition the provisioning of services to another contractor for just a two to six-month period of performance when recruitment of workers, administrative matters, and costs are considered. [REDACTED] already has workers in place, is successfully meeting the requirements, and

has an established system for managing this specific contract. Changing contractors for what may be just a two to six-month period would present a high-risk of disrupting services with turnover of workers, vacancies, and setbacks from a challenging learning curve. The price of a potential two to six-month contract is more than likely to be substantially higher than an award of a bridge to the existing contractor at the current unit price.

6. Efforts to Obtain Competition:

The requirement for a new DHA DAD-MA PSP for MTFs 5-year contract is currently in the source selection evaluation phase by a source selection evaluation board and was competed as a 100% small business set aside for North American Industry Classification System (NAICS) 541611, Administrative Management and General Management Consulting Services.

The DHA DAD-MA PSP for MTFs contract includes support for 72 multiple armed services [Navy, Air Force and DHA], providing more efficient and consistent services to the involved MTFs.

A Notice of Intent regarding this bridge contract will be published on System for Award Management at SAM.gov with the same NAICS, accompanied by a redacted version of the J&A, when approved. All resulting requests and responses will be addressed prior to award on the bridge contract. No exceptions listed in FAR 5.202 apply to this action.

7. Actions to Increase Competition/Remove or Overcome any Barriers to Competition:

The new long-term 5-year DAD-MA PSP for MTFs acquisition is currently in the source selection evaluation phase with an anticipated award date of 30 June 2025. The new DAD-MA PSP for MTFs contract combines multiple expiring contracts from multiple armed service branches [Navy, Air Force, and DHA], allowing for a larger, more appealing enterprise-wide contract to potential offerors, and improved prices. The expiring AF PSP contract [REDACTED] resulted in a Total Small Business (SB) Set-aside competition, and the new DAD- MA PSP for MTFs which includes AF, Navy and DHA PSP support was also competed as a Total Small Business Set Aside. The recompete of these AF, Navy, and DHA PSP services reflects the efforts shown to eliminate the agency's need for any future bridge actions.

8. Market Research:

Market Research was conducted via a Request for Information (RFI) number HT0011-24-RFI-0187 dated 15 February 2024 and closed on 12 March 2024. Results of the RFI yielded [REDACTED] vendors responding, including large and SBs. Of the responses, a majority were from SBs. When evaluated for technical capability, only [REDACTED] SBs had comparable experience to meet requirements of the Performance Work Statement (PWS) included in the RFI, and on the surface demonstrated the capability to meet the needs of DHA.

While the results showed [REDACTED] potential offerors, the effort inherent in fully competing the short-term bridge contract also includes the risk of receiving little or no competition from the efforts. The results are consistent with the effort being made in competing the new contract. The responses also did not overshadow other considerations: the previously mentioned risks inherent in transitioning between contractors, and most especially the risk of a gap in service, losing patient safety and support to all AF MTFs.

9. Other Facts:

a. Procurement History:

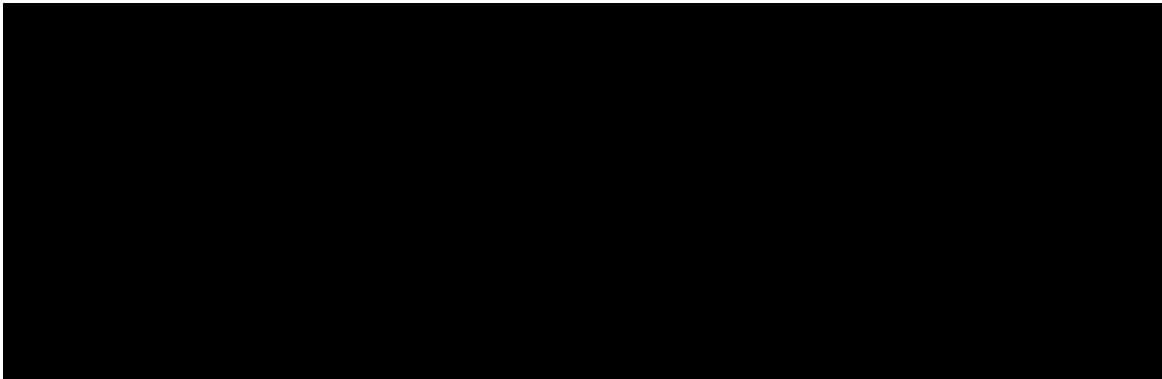
(1) Is this a new requirement? No.

(2) If 9.a.(1) is No, was the action just prior to this one competed? Yes. The prior requirement was competed as a Total SB Set-Aside. The pending award of the new contract was also competed as a Total SB Set-Aside.

(3) If 9.a.(2) is Yes, what has changed where this action cannot be competed? Short term bridge is necessary for continuity of services.

b. Additional Information: Not Applicable.

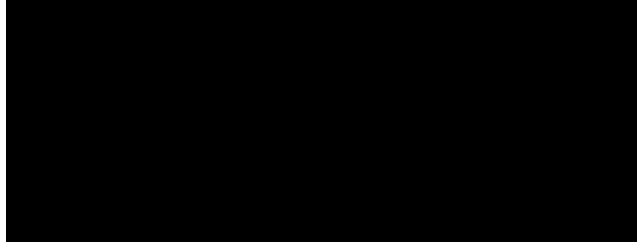
10. Interested Sources: To date, no other sources have written to express an interest, beyond responses to the RFI. The RFI respondents are listed below:



Additionally, the notices required by FAR 5.201 shall be published with a redacted version of this approved J&A, and any proposals received shall be considered.

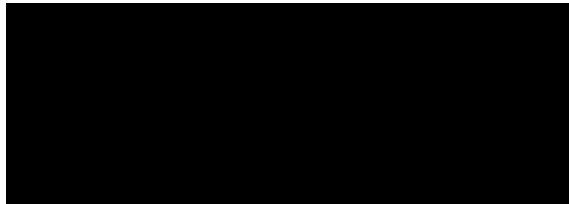
11. Technical Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



12. Requirements Certification:

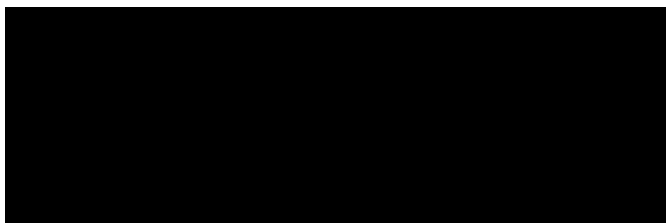
I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



13. Fair and Reasonable Cost Determination:

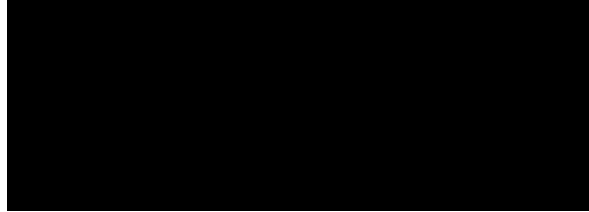
I hereby determine the anticipated cost to the Government for this contract action will be fair and reasonable.

Basis for Determination: Current contract prices relied on in the expiring contract will be utilized for determination of fair and reasonable pricing. At time of the contract award and at time of all options exercised, the contract prices will be determined fair and reasonable. The Independent Government Cost Estimate and knowledge of the Contracting Officer will further support this decision.



14. Legal Review:

I have reviewed this justification and have found it to be legally sufficient.



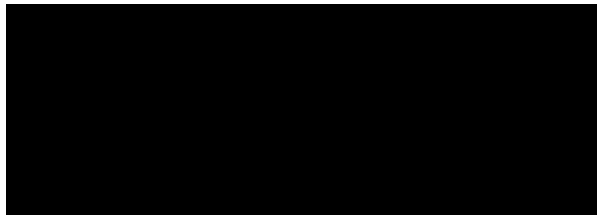
15. Contracting Officer Certification: I certify this justification is accurate and complete to the



Review

I have reviewed this justification and find it adequate to support the sole source acquisition.

Concurrence



Approval

Based on the foregoing justification, I hereby approve the procurement of the DHA AF PSP Bridge Contract, with a potential value of [REDACTED] on a sole source basis pursuant to the authority of 41 U.S.C. 1901, as implemented in FAR 13.5, subject to availability of funds, and provided that the supplies and/or services herein described have otherwise been authorized for acquisition.

